

Comparing universal human rights standards with the Cairo declaration

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PROVIDER

Gemini

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LANGUAGE

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NEUTRAL

LENGTH

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0.7**SYSTEM PROMPT**

You are an expert AI content generator specializing in creating structured article.

USER PROMPT

Write a concise, self-contained article entry for the title: "Comparing universal human rights standards with the Cairo declaration".

Overall topic for alignment: Islam and human rights.

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:

- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

Target audience: GENERAL. Writing tone: NEUTRAL.

SUMMARY

This article analyzes the philosophical and legal tensions between the UN's Universal Declaration of Human Rights (UDHR) and the Organization of Islamic Cooperation's Cairo Declaration on Human Rights in Islam (CDHRI). The core conflict lies between the UDHR's concept of "universality"—where rights are secular and inherent to the individual—and the CDHRI's "cultural relativism," where rights are divine gifts contingent upon religious duty.

The CDHRI (1990) was established as a response to the perceived Western secularism of the UDHR (1948). The defining feature of the Cairo Declaration is its "supremacy clause" (Articles 24 and 25), which subordinates all rights to Sharia law. This acts as a "clawback clause," creating four primary divergences from international standards:

- **Religious Freedom:** While the UDHR protects the right to change one's faith, the CDHRI prohibits converting Muslims to other religions or atheism, implicitly validating apostasy laws.
- **Gender:** The UDHR mandates absolute equality. In contrast, the CDHRI advocates for "complementarity" rather than identical rights, maintaining traditional gender roles regarding inheritance and family leadership.
- **Freedom of Expression:** The CDHRI restricts speech that violates the "sanctity of Prophets," effectively prioritizing blasphemy laws over the UDHR's broad protection of opinion.
- **Corporal Punishment:** The CDHRI permits Sharia-prescribed punishments (such as *Hudud*), viewing them as justice rather than the "cruel and inhuman treatment" forbidden by the UDHR.

Ultimately, while both frameworks value education and the family unit, they represent competing epistemologies: the UDHR's liberal individualism versus the CDHRI's religious communitarianism.

FULL CONTENT

Comparing Universal Human Rights Standards with the Cairo Declaration

The discourse surrounding human rights in the modern era is often characterized by a tension between the concept of "universality"—the idea that rights are inherent to all human beings regardless of culture or geography—and "cultural relativism," which argues that rights must be interpreted through the lens of specific cultural, religious, and historical contexts. Nowhere is this tension more palpable than in the comparison between the United Nations' Universal Declaration of Human Rights (UDHR) and the Organization of Islamic Cooperation's (OIC) Cairo Declaration on Human Rights in Islam (CDHRI).

To understand the intersection of Islam and human rights, one must examine how these two frameworks align, where they diverge, and the philosophical underpinnings that drive their respective narratives. This article provides a detailed comparison of these documents, analyzing their structural differences regarding authority, gender, freedom of religion, and freedom of expression.

Historical Context and Origins

To fully appreciate the divergence between these two standards, it is necessary to understand their origins.

The Universal Declaration of Human Rights (1948)

Adopted by the UN General Assembly on December 10, 1948, the UDHR was a direct response to the atrocities of World War II. It sought to establish a common standard of achievement for all peoples and nations. The drafting committee was diverse, including representatives from the United States, France, Lebanon, China, and the Soviet Union, among others. However, the philosophical foundation of the UDHR relies heavily on secular, liberal political theory, emphasizing the individual as the primary bearer of rights.

While the UDHR was adopted with no votes against it, there were eight abstentions. Among them was Saudi Arabia, which argued that certain articles—specifically those regarding the freedom to change one's religion and gender equality—contradicted the tenets of Islamic law (Sharia).

The Cairo Declaration on Human Rights in Islam (1990)

Decades later, as the geopolitical influence of Muslim-majority nations grew, there was a concerted effort to codify human rights from an Islamic perspective. Many member states of the OIC felt that the UDHR was a product of Western secularism that failed to account for the cultural and religious values of the Islamic world.

In 1990, the OIC adopted the Cairo Declaration on Human Rights in Islam. The CDHRI was intended to serve as a guide for member states in the field of human rights. It does not function as a legally binding treaty in the same way as the International Covenant on Civil and Political Rights (ICCPR), but it represents a significant political and ideological statement. It asserts that fundamental rights and freedoms are an integral part of the Islamic religion and that no one has the right to suspend them, except as prescribed by the Law (Sharia).

Fundamental Philosophical Divergence

The primary distinction between the two frameworks lies in the source of their authority.

The Secular vs. Theocentric Approach The UDHR is secular in nature. It posits that human rights are "inherent" to the human person. They are not granted by a state or a deity; they exist simply because a human being exists. This natural law perspective suggests that rights are inalienable and cannot be stripped away by any temporal authority.

In contrast, the CDHRI is theocentric. The Preamble and Article 1 explicitly state that human rights are "a gift from God." In this framework, rights are not merely entitlements but are also duties and obligations owed to God. Consequently, the enjoyment of these rights is contingent upon obedience to divine law. This shifts the focus from the autonomy of the individual to the individual's role within the religious community (Ummah).

The Supremacy of Sharia Law

The most significant point of contention—and the feature that most distinguishes the Cairo Declaration from international standards—is the "supremacy clause" found in the final articles of the CDHRI.

Articles 24 and 25 of the CDHRI Article 24 states: "All the rights and freedoms stipulated in this Declaration are subject to the Islamic Shari'ah." Article 25 follows: "The Islamic Shari'ah is the only source of reference for the explanation or clarification of any of the articles of this Declaration."

These articles effectively condition all rights listed in the document on their compatibility with Sharia law. In the context of international law, this is often viewed as a "clawback clause." While the document may ostensibly grant rights similar to the UDHR—such as the right to life or privacy—the application of those rights is limited by how a specific state interprets Sharia. Since interpretations of Sharia vary widely among OIC member states (ranging from secular-leaning interpretations to strict orthodox interpretations), the practical protection of rights under the CDHRI can be inconsistent.

In the UDHR framework, rights may only be limited by law for the purpose of securing the rights of others or meeting the just requirements of morality, public order, and general welfare in a democratic society (Article 29). The limitation is secular and legally defined, whereas the CDHRI's limitation is religious and interpretative.

Freedom of Religion and Apostasy

One of the sharpest disagreements between the two standards concerns the freedom of religion, specifically the right to change one's belief.

The Universal Standard Article 18 of the UDHR is unequivocal: "Everyone has the right to freedom of thought, conscience and religion; this right includes freedom to change his religion or belief..." This explicitly protects the right of an individual to leave their faith or convert to another, or to hold no faith at all.

The Cairo Standard Article 10 of the CDHRI states: "Islam is the religion of unspoiled nature. It is prohibited to exercise any form of compulsion on man or to exploit his poverty or ignorance in order to convert him to another religion or to atheism."

While the CDHRI forbids forcing a Muslim to convert to another religion, it remains silent on the right of a Muslim to voluntarily leave Islam. In traditional interpretations of Sharia favored by some OIC states, apostasy (*riddah*) is considered a major sin and, in some legal codes, a capital crime. By making the declaration subject to Sharia (Article 24), the CDHRI implicitly allows states to criminalize apostasy, directly contradicting the UDHR's protection of the right to change religion.

Gender Equality vs. Complementarity

The treatment of women's rights highlights the difference between "equality" in the secular sense and "equity" or "complementarity" in the religious sense.

The Universal Standard The UDHR (Article 2) entitles everyone to rights without distinction of sex. It presumes absolute equality between men and women in dignity, rights, marriage, and before the law.

The Cairo Standard Article 6 of the CDHRI states: "Woman is equal to man in human dignity, and has rights to enjoy as well as duties to perform..."

The subtle distinction here is vital. The CDHRI affirms equality in *dignity*, but it does not affirm identical rights. It frames the relationship through the lens of complementary duties. For example, it specifies that the husband is responsible for the support and welfare of the family.

Critics argue that this framework cements traditional gender roles. Under Sharia-based personal status laws in many nations, women may face unequal treatment regarding inheritance (often receiving half the share of a male), divorce proceedings, and child custody. The CDHRI validates these distinctions by referencing Sharia as the ultimate authority, whereas the UDHR views such distinctions as discrimination.

Freedom of Expression and Blasphemy

Freedom of speech is another arena where the definition of "rights" diverges significantly based on the alignment with religious values.

The Universal Standard Article 19 of the UDHR guarantees the right to freedom of opinion and expression, including the freedom to seek, receive, and impart information and ideas through any media and regardless of frontiers. While international law allows for restrictions on hate speech, the threshold is high and generally does not protect religious concepts from criticism.

The Cairo Standard Article 22 of the CDHRI grants the right to express opinions freely, but adds the caveat: "...in such manner as would not be contrary to the principles of the Shari'ah." It further states

that information is a vital necessity to society and prohibits its exploitation in ways that violate the "sanctity and the dignity of Prophets," or undermine moral and ethical values.

This provision effectively serves as a shield for blasphemy laws. By prioritizing the "sanctity of Prophets" over the individual's right to free speech, the CDHRI allows states to criminalize criticism of religion. In practice, this has been used in various jurisdictions to prosecute individuals for secular blogging, artistic expression, or political dissent framed as religious insult.

Corporal Punishment and the Right to Life

Both documents affirm the right to life and protection from torture, but the definitions of "torture" and "cruel punishment" differ due to the Sharia clawback clause.

The Universal Standard Article 5 of the UDHR states: "No one shall be subjected to torture or to cruel, inhuman or degrading treatment or punishment." International human rights bodies have consistently interpreted this to include corporal punishments such as flogging, amputation, and stoning.

The Cairo Standard Article 2 of the CDHRI forbids taking a life "except for a justice cause prescribed by the Shari'ah." Similarly, while it guarantees safety from bodily harm, the application of Sharia allows for *Hudud* punishments (punishments fixed by the Quran/Hadith for crimes against God).

Because these punishments are divinely ordained in the view of the signatories, they are not considered "cruel" or "torture" within the internal logic of the Cairo Declaration, even though they meet the definition of torture under international human rights standards.

Areas of Convergence

Despite these profound differences, it is important to acknowledge areas where the two documents overlap. Both the UDHR and the CDHRI strongly emphasize:

1. **The Right to Education:** Both documents view education as a fundamental right and a duty of the state to provide.
2. **The Family Unit:** Both documents identify the family as the natural and fundamental unit of society requiring protection.
3. **Prohibition of Arbitrary Arrest:** Both frameworks advocate for due process and the rule of law (though the definition of "law" differs).
4. **Economic Rights:** Both acknowledge the right to work, property ownership (with some restrictions in CDHRI), and a standard of living adequate for health and well-being.

Conclusion

The comparison between universal human rights standards and the Cairo Declaration highlights a persistent geopolitical and philosophical divide. The UDHR champions a liberal, individualistic, and secular vision of human dignity, asserting that rights are universal and indivisible. The Cairo Declaration presents a communitarian, religious vision, asserting that rights are derived from divine law and are necessarily limited by the moral imperatives of that law.

For the general observer, understanding the Cairo Declaration is essential to comprehending why certain Muslim-majority nations may reject specific UN resolutions or maintain legal codes that seem contradictory to Western standards. The CDHRI is not merely a rejection of rights, but an attempt to redefine them within an Islamic epistemology.

Ultimately, the debate remains: Can human rights be truly "universal" if they do not account for deep-seated religious values? Conversely, can "human rights" exist at all if they are entirely subject to the interpretation of religious texts by the state? The tension between the UDHR and the Cairo Declaration ensures that this dialogue remains one of the most critical in the field of international relations and law.

SEGMENTED DATA (2)

Comparing Universal Human Rights Standards with the Cairo Declaration

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References

No external sources used.